Montgomery County District Court

Cause No. 2024-CV-0027

Emily Johnson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Emily Johnson

Date:	October 22, 2024
Location:	Offices of Villa & Dawson LLP
Examining attorney:	Richard Marshall, Ashford & Lyle LLP
Defending attorney:	Jeffrey Hayes, Villa & Dawson LLP

Q: Please state your full name for the record.

A: I'd rather just say I'm the plaintiff in this case. You already have my name in the complaint.

Q: For the record, we still need it. Please state your name.

A: [Plaintiff name].

Q: Thank you. Now, on the day of the collision, where were you driving?

A: I was heading east on a main road in Katy, Texas. I was trying to turn left into a shopping center parking lot.

Q: Describe the intersection for me.

A: It's a busy signalized intersection. There's a left-turn arrow, but it was a little worn and the lights are high up, so you have to look carefully. I was waiting for a gap in oncoming traffic.

Q: What happened next?

A: I started my turn when I saw the light turn yellow. Then a pickup coming straight through the intersection hit the front driver's side of my car. The impact spun me partway around.

Q: Did you lose consciousness?

A: I don't think I fully blacked out, but I was dazed. I remember the airbag going off and my head snapping against the window. Everything felt slow and fuzzy.

Q: When did you first start noticing symptoms?

A: Within an hour or so. I had a pounding headache, I felt nauseous, and the bright lights in the ER were almost unbearable. My husband had to repeat things to me because I kept losing my train of thought.

Q: Did you seek medical treatment after the accident?

A: Yes. I was taken by ambulance to the emergency room. They did a CT scan and diagnosed me with a concussion. After that I saw my primary care doctor and then a neurologist.

Q: What treatment have you received since then?

A: I've had physical therapy for my neck and balance, and I've been seeing a neurologist about the headaches. I was told to limit screen time and reading, and to rest in a dim room when the headaches get bad.

Q: How have the symptoms affected your dialy life?

A: A lot. I used to manage the household books and work part-time as a bookkeeper. Now I can only work a few hours before the screen gives me a migraine. I've had to cancel plans with friends because I can't handle noise or crowds. Some days I can't drive at all.

Q: Are you still experiencing these symptoms today?

A: Yes, though they're better than they were. I still get headaches most days, and I sometimes forget words in the middle of a sentence. My doctor says recovery can take a long time.